

FEDERAL BUREAU OF INVESTIGATION



FINANCE AND FACILITIES DIVISION | PROCUREMENT SECTION

JUSTIFICATION AND APPROVAL (J&A) FOR OTHER THAN FULL AND OPEN COMPETITION



JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

Requisition Number: SHOP-PR-26-001542

Date: 04/06/2026

Estimated Contract Dollar Value:

1. Identification of the agency and contracting activity.

The U.S. Department of Justice, Federal Bureau of Investigation (FBI), Procurement Section (PS), National Acquisition Programs Unit (NAPU) has prepared this justification for other than full and open competition for a TWIST Bioscience custom assay panel on behalf of the Laboratory Division (LD), Biometrics Analysis Section (BAS), DNA Support Unit (DSU).

2. The nature and/or description of the action being approved, i.e., sole source, limited competition, establishment of a new source, etc.

The FBI intends to award a sole source, firm-fixed-price (FFP) contract to TWIST Bioscience Corporation, (CAGE Code 6Z0F4), 681 Gateway Boulevard, South San Francisco, CA 94080.

3. A description of the supplies or services required to meet the agency's needs.

The Federal Bureau of Investigation (FBI) mission is to protect and defend the United States against terrorist and foreign intelligence threats, to uphold and enforce the criminal laws of the United States, and to provide leadership and criminal justice services to federal, states, municipal, and international agencies and partners. The FBI performs these responsibilities in a manner that is responsive to the needs of the public and is faithful to the needs of the public and is faithful to the Constitution of the United States of America. The FBI's Laboratory Division (LD) has a requirement for a custom assay panel with 96 reactions, manufactured by TWIST Bioscience Corporation. These laboratory materials and substances will support the Laboratory's mission in the following ways: 1) Develop a single-nucleotide polymorphism (SNP) profile to support Investigative Genetic Genealogy (IGG) investigations; and 2) perform DNA sequencing for information-investigation-intelligence (i3) casework.



Presently, BAS/DSU is performing testing and validation of IGG laboratory processes and will also continue to conduct i3 testing. The type of assay panel required for these purposes is best supported by a new contract action. The government purchasing card (GPC) substantially limits the threshold of reagents that can be procured at one time. As a result, GPC restrictions limit the efficiency and speed at which these sequencing tasks may be performed. This custom panel is critical to laboratory operations as IGG is one of the Laboratory Division's (LD) fiscal year (FY) 2026 priorities per the LD Assistant Director (AD). Without this assay panel, the BAS cannot meet this AD requirement.

The TWIST Bioscience assay has already been extensively tested and assessed by the FBI Laboratory's contract lab, the National Bioforensic Analytical Center (NBFAC) in Fort Detrick, Maryland, and has been shown to be fit for this purpose. This assay is a custom product, produced only by TWIST. Though other vendors such as Illumina Inc. and Daicel Arbor Biosciences may offer similar products, these products do not include the same set of required SNP markers and have not been tested/validated by the FBI Laboratory or FBI Laboratory contract labs. As a result, development and implementation of a different assay would necessitate extensive testing and evaluation, ultimately resulting in substantial additional costs (testing/evaluation/personnel) and unnecessary implementation delays.

4. The statutory authority permitting other than full and open competition.

For purposes of this acquisition, the statutory authority permitting other than full and open competition is delineated at 41 U.S.C. 3304 (a) (1) and implemented at FAR 6.302-1, *"Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements"*.

5. Demonstrate the unique qualifications of the proposed contractor or the nature of the action requiring the use of the authority.

Twist Bioscience Corporation is the sole manufacturer and the sole distributor of this custom panel for this requirement. There are no authorized resellers.

- **Twist Custom Panel, 96 Reactions; Twist Custom Panel, 96 Reactions (101002)**
Twist Design ID: TE-91990771; Reactions: 96; Probes: 1256503, Part Number: 101002

These items are commercially available supplies and products. Reagents and consumables are products widely used by numerous forensic laboratories in the United States. While these are commercial products, these items are very specific to the laboratory instruments they are being used on.

It is imperative that the FBI Laboratory obtain this custom reagent for the continued development of the Investigative Genetic Genealogy workflow and to properly and efficiently process and analyze DNA samples submitted to the FBI Laboratory.

6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by Subpart 5.2 and, if not, which exception under 5.202 applies.



A Notice of Intent (NOI) to award a sole source contract to TWIST Bioscience will be posted on the SAM.gov website. This announcement will also give an opportunity for other vendors to demonstrate their ability to meet the FBI's specific needs through the submission of their technical capabilities and cost information for consideration prior to an award being issued.

7. The anticipated dollar value of the proposed acquisition, including options if applicable, and a determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

Before awarding a contract, the Contracting Officer will perform a determination of price reasonableness in accordance with FAR 13.106-3 and 13.501(a)(2)(i).

8. A description of the market research conducted and the results.

Market research was conducted by DSU personnel, (Senior Biologist and Program Manager), using commercial manufacturer websites, technical calls with vendors, and internal BAS requirement meetings. TWIST Bioscience is the only responsible source capable of providing this 96 reaction custom assay panel for IGG. There are no third-party substitute equivalents.

9. Any other facts supporting the use of other than full and open competition.

See section 5 above.

10. A listing of any sources that expressed a written interest in the acquisition.

11. A statement of any actions the agency may take to remove or overcome any barriers to competition, if subsequent acquisitions are anticipated.

The FBI will continue to conduct market surveys and research available through industry shows and technology releases in the form of papers and journals. This will be used to identify potential sources for subsequent acquisitions.